

The Governance-Psychology Gap

*Why Trinidad and Tobago's Organisations Are Exposed:
And What to Do About It*

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ABOUT THE AUTHOR

Ayoola Clarke-Prescott is a Business Psychologist and Anonymisation Specialist with over a decade of experience in judicial administration, information governance, and organisational leadership. She holds an MSc. in Business Psychology (4.0 GPA, Franklin University) and a BSc. in Library & Information Science with Legal Studies (3.65 GPA, Magna Cum Laude, COSTAATT). She is recognised as the main architect of the Judiciary of Trinidad and Tobago's anonymisation methodology, building end-to-end policies, procedures, and operational systems for the protection of sensitive court documentation from the ground up. She sits at the intersection of two disciplines that are rarely combined—behavioural science and information governance. This whitepaper reflects both.

EXECUTIVE SUMMARY

The Governance-Psychology Gap

Trinidad and Tobago stand at a defining moment in its relationship with data privacy and organisational accountability. The Data Protection Act of 2011 (long dormant in practice) is moving toward full enforcement. The Telecommunications Services of Trinidad and Tobago ransomware breach of 2023 exposed over 1.2 million customer records and ended the careers of senior executives. Public trust in institutional data handling is at a low point. Yet most organisations in this country are responding to these pressures the wrong way. They are investing in IT security systems while leaving the human architecture of information governance almost entirely unaddressed. They are fixing the firewall and ignoring the behaviour behind it.

This report argues that the most dangerous gap in Trinidad and Tobago's corporate landscape is not technological. It is behavioural. It is the space between having a data policy and having a data culture. In other words, it is the gap between implementing a governance framework and building the human environment in which that framework is actually followed.

We call this the Governance-Psychology Gap and closing it requires a discipline that most organisations in Trinidad and Tobago have not yet engaged; the deliberate application of behavioural science to information governance strategy.

Key Findings at a Glance

- The DPA 2011 is moving toward full enforcement, but organisations that wait are organisations that scramble
- The TSTT breach was a human failure before it was a technical one; credentials, protocol gaps, and behavioural vulnerabilities were the entry points
- Over 52% of T&T workers report that their employer do not prioritise psychological well-being creating environments where data breaches go unreported
- Most corporate data incidents in T&T involve human decisions, not software failures
- The organisations best positioned to manage data risk are those that treat it as simultaneously a governance and a human behaviour challenge

SECTION 1

The Data Privacy Landscape in Trinidad and Tobago

A Law in Transition

Trinidad and Tobago's primary framework for data protection is the Data Protection Act of 2011. Passed with strong intent, the Act's implementation has been anything but smooth. For over a decade, it remained only partially proclaimed which makes the Act somewhat enforceable on paper, toothless in practice.

The implications of this legal limbo have been significant. Organisations operating in Trinidad and Tobago have had little regulatory pressure to formalise their data governance practices. Many have assumed that the absence of enforcement means the absence of risk. That assumption has proven costly.

The Legal Reality

The Data Protection Act of 2011 provides for the protection of personal privacy and information processed and collected by public bodies and private organisations. However, the Act was only partially proclaimed on January 6, 2012, meaning that for over a decade, critical enforcement provisions remained inactive. Recent indicators point to full enforcement coming into effect, closing the window for voluntary compliance.

The enforcement gap has created a dangerous false comfort. Organisations have had time to build proper governance infrastructure and most have not used that time wisely. When full enforcement arrives, those organisations will face the dual pressure of an imminent compliance deadline and the institutional inertia of years without accountability.

Critically, legal experts have noted that the current Act falls short in several key areas by international standards. It does not establish an independent Data Protection Authority with real enforcement power, does not mandate Privacy by Design and by Default, and imposes penalties far weaker than frameworks like the GDPR, which levies fines of up to 4% of a company's global annual turnover for serious violations. The pressure to modernise is significant and growing.

The TSTT Breach: A Wake-Up Call That Many Organisations Have Not Yet Answered

In October 2023, the Telecommunications Services of Trinidad and Tobago (TSTT) experienced a ransomware attack executed by the hacking group RansomEXX. The breach exposed six gigabytes of customer data later uploaded to the dark web and downloaded over 13,000 times within weeks of disclosure. Initial reports indicated the leaked data was largely unencrypted and included personally identifiable information such as full names, national identification numbers, email addresses, and contact details for over 1.2 million customers.

The corporate consequences were severe. The CEO was terminated. The CFO departed. The corporate communications head resigned months later. The organisation's reputation sustained damage that persists to this day.

What the TSTT Breach Actually Revealed

The breach was not simply an IT failure. It was a systems and human failure simultaneously. TSTT was reportedly aware of the breach on October 9 but did not publicly disclose it until media pressure forced disclosure on October 28, that is nearly three weeks later. T&T's Data Protection Act contains no requirement to report breaches to a regulator within a specific timeframe, and no mandatory obligation to inform affected individuals. This is not a loophole. It is a structural absence and every organisation in this country operates within it.

1.2M+

TSTT customer records exposed in 2023
breach

13,000+

Times the leaked data was downloaded
from the dark web

3 executives

Senior leaders lost their roles in the
aftermath

What the TSTT breach illustrated most clearly is that data risk in Trinidad and Tobago is not a theoretical future concern. It is a present operational reality and one with direct reputational, financial, and leadership consequences. Every board member, every Chief Human Resource Officer, every legal counsel who watched that story unfold should have asked the same internal question- do we have a protocol for this?

Most do not.

SECTION 2

The Three Critical Pain Points for T&T; Corporate Leaders

Based on analysis of the Trinidad and Tobago's corporate landscape, the TSTT breach fallout, and organisational data from the public and private sectors, three distinct pain points emerge as the most pressing for leadership teams operating in sensitive information environments.

Pain Point 1: Structural Governance Gaps in Data-Sensitive Organisations

Majority of organisations in Trinidad and Tobago collect and process significant volumes of sensitive and personal data. These are often in the form of employee records, client information, court documents, health data, salary structures, and legal correspondence that flow through these institutions daily.

The governance architecture around that data, however, rarely matches its sensitivity. What passes for data governance in many organisations amounts to shared drives, spreadsheet access logs, physical filing rooms with inconsistent access controls, and informal protocols passed down verbally between staff. There is policy, but there is rarely infrastructure.

The distinction matters enormously. A policy is a document. Infrastructure is what makes the policy real and is inclusive of features like classification systems, anonymisation protocols, access authorisation structures, breach reporting pathways; and regular audits that ensure sensitive data is protected at every point of its lifecycle.

The Gap in Practice

An organisation may have a data protection policy in its manual. But if staff have not been trained on what data governance means in their day-to-day work; if there is no clear protocol for who can access which documents and if there is no system for detecting or reporting a potential breach, the policy is simply decorative. The infrastructure does not exist. This is the gap that most organisations in Trinidad and Tobago are experiencing in right now.

Pain Point 2: Vibes-Based People Management in High-Stakes Environments

Trinidad and Tobago's corporate culture has a well-documented tendency toward relationship-based, intuition-driven people management. Talent acquisition decisions are made on reputation and personal connection rather than competency frameworks. Performance management is typically built around tenure and seniority rather than evidence-based assessment. Conflict handled through avoidance until it becomes a grievance or a resignation.

This approach to people management is not malicious, it is a product of a small, interconnected society where professional and personal networks overlap significantly. But in high-stakes information environments, it creates serious vulnerabilities. When hiring is intuition-based, psychological fit for roles requiring discretion and integrity

is rarely assessed formally. When performance management avoids difficult conversations, behavioural problems go uncorrected. When conflict is suppressed, trust erodes and with it, the willingness to raise concerns about potential data mishandling.

Research findings from the Trinidad and Tobago public sector are instructive and likely conservative when applied to the broader corporate landscape:



Source: Chief Personnel Officer Survey, T&T; Public Service (2003, cited in Trinidad Express, October 2024)

These numbers point to organisations where the psychological contract between employer and employee is fragile. In environments where staff do not feel psychologically safe, they do not report errors. They do not flag potential breaches. They do not challenge protocol violations by colleagues. The human warning system that every organisation depends on, the instinct to say 'something doesn't seem right here' is effectively switched off or ignored.

Pain Point 3: The Missing Link Between Policy and Culture

The third pain point is the most nuanced, and in many ways the most important. It is the failure to understand that information governance is not primarily a technical or legal challenge. It is a cultural one.

Every data breach has a human moment. Someone made a wrong decision. Someone did not understand the protocol. Someone felt that raising a concern was too risky, or too awkward, or simply not worth the effort. These are not IT failures. They are behavioural failures and they occur in organisations where the culture around data handling has never been deliberately constructed.

The organisations that manage data risk most effectively are those that have built what can be called a "culture of data custodianship". This is reflective of an organisational environment where every staff member understands that they are a steward of sensitive information; where the consequences of mishandling are understood not as abstract legal liability but as real human harm, and where the psychological safety to speak up about concerns is embedded in the management culture.

This culture cannot be created by policy. It cannot be installed by IT. It requires the deliberate application of behavioural science to governance strategy. This is precisely the intersection that most organisations in Trinidad and Tobago have not yet discovered.

The Governance-Psychology Gap: Defined

The Governance-Psychology Gap is the space between an organisation's formal data governance framework and the human culture that determines whether that framework is actually followed. It is the distance between what the policy document says and what employees actually do when no one is watching. Closing this gap requires two things working simultaneously. These are, robust governance infrastructure and a psychologically informed approach to the human systems that operate within it.

REFERENCE LIST

The Governance-Psychology Gap

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Citation Format

All references are presented in APA 7th Edition format. Sources are organised by thematic category corresponding to the sections of the whitepaper, followed by a full alphabetical reference list. Where digital sources are cited, retrieval URLs are provided. Where sources have been accessed through secondary reporting (e.g., survey data reported in newspaper articles), the primary source is identified and the secondary source is cited.

Part I: Legislative & Regulatory Sources

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Part VI: About the Author - Academic Credentials

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*Every organisation in T&T that handles
sensitive information is currently operating
with some version of the Gap.*

*The question is not whether the gap exists.
It is how wide it is, and whether leadership
has the foresight to close it in time.*

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